ENF 185/2025 Ostin v Oleda

JANUARY 16, 2026 ENFORCEMENT ORDERS

Claim No. ENF 185/2025

THE DUBAI INTERNATIONAL FINANCIAL CENTRE COURTS

IN THE COURT OF FIRST INSTANCE

BETWEEN

OSTIN

Judgment Creditor/Applicant

and

OLEDA

Judgment Debtor/Respondent

ORDER WITH REASONS OF H.E. JUSTICE NASSIR AL NASSER

UPON the Order with Reasons of H.E. Justice Nassir Al Nasser dated 25 November 2025 (the "Order") seeking

AND UPON the Judgment Creditor's Appeal Notice dated 12 December 2025 seeking permission to appeal against the Order (the "Judgment Creditor's Application for Permission to Appeal")

AND UPON the Respondent's submissions in opposition to the Judgment Creditor's Application for Permission to Appeal dated 2 January 2026

AND UPON reviewing the case bundle

AND PURSUANT TO the Rules of the DIFC Courts ("RDC")

IT IS HEREBY ORDERED THAT:

1. The Judgment Creditor's Application for Permission to Appeal is granted.

2. Costs shall be costs in the case

Issued by:

Devin Sumo

Assistant Registrar

Date of Issue: 16 January 2026

At: 9am

SCHEDULE OF REASONS

1. This is an Appeal brought by the Judgment Creditor in this Claim, against the Order with Reasons of H.E. Justice Nassir Al Nasser dated 25 November 2025 (the "Order").

2. The background of this Claim does need not be repeated in the course of this decision.

3. In accordance with Rule 44.19 the Rules of the DIFC Courts ("RDC"), permission to appeal may be granted in limited situations, being when there is a real prospect that the appeal would succeed, or where there is another compelling reason why the appeal should be heard.

4. In review of the Judgment Creditor's Application for Permission to Appeal filed by the Judgment Creditor, I find that the appeal does meet the requirements under RDC 44.19. I briefly set out my reasons below.

5. The Judgment Creditor submits 6 grounds on which its appeal is based on. However, I find that ground 1 is sufficient enough for the Courts to grant permission to appeal.

6. The Judgment Creditor provides that I was wrong in interpreting Article 31(4) of the New DIFC Court's Law". I find that the Appeal Court will set a precedent as to the interpretation of Article 31(4) of the New DIFC Courts Law.

7. Therefore, in light of the Judgment Creditor's submission, I am of the view that there are compelling reasons for the appeal to be heard, and therefore, the appeal does satisfy the requirements of RDC 44.19.

8. Costs shall be costs in the case.